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Case Number: 24SMCV03269 Hearing Date: September 23, 2026 Dept: M

CASE NAME: Woods, v. Acadia

Malibu Inc., et al.

CASE NO.: 24SMCV03269

MOTION: Motion

for Summary Adjudication of Affirmative Defenses

Pro Hac Vice Application

HEARING DATE: 9/17/2026

MOTION FOR

SUMMARY ADJUDICATION

Legal

Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one

or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (Gonzales v. Superior Court (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to¿frame¿the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co.¿(2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a [party] moving for summary judgment only requires that he or she negate [the] theories [] as alleged in the [pleading]; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)¿

EVIDENTIARY ISSUES

Defendants' objections are OVERRULED.

Analysis

Plaintiff Symere Woods moves for summary adjudication of certain affirmative defenses claimed by Defendant Acadia Malibu Inc. dba Oro Recovery House Recovery Centers. Plaintiff notices the following issues:

ISSUE NO. 1: Oro Recovery Owed

Statutory and Contractual Duties of Confidentiality to Plaintiff and Failed to Perform Them (Twenty-Third and Thirtieth Affirmative Defenses);

ISSUE NO. 2: Oro Recovery's Notice,

Statute of Limitations, and Laches Defenses are Without Merit (Third, Fifth, and Seventh Affirmative Defenses);

ISSUE NO. 3: Oro Recovery's

Necessary-Party, Res Judicata, and Real-Party- in-Interest Defenses are Unsupported (Twelfth, Thirteenth, and Nineteenth Affirmative Defenses);

ISSUE NO. 4: Oro Recovery Breached

Its Contractual Confidentiality Obligations and Cannot Claim Fulfillment (Fifteenth Affirmative Defense);

ISSUE NO. 5: Plaintiff's Claims Do

Not Rest on Unauthorized Representations by Any Co-Defendant (Seventeenth Affirmative Defense);

ISSUE NO. 6: No Accord and

Satisfaction Exists Because Plaintiff Accepted No Funds From Oro Recovery (Eighteenth Affirmative Defense);

ISSUE NO. 7: Oro Recovery Has

Produced No Evidence Illustrating That Plaintiff Acted in Bad Faith and Without Proper Business Justification (Twenty-Fourth and Twenty-Ninth Affirmative Defense);

ISSUE NO. 8: Oro Recovery's

Seventeenth, Twenty-Fourth, and Twenty-Ninth Affirmative Defenses Lack Merit as to Any of Woods's Claims; and

ISSUE NO. 9: Oro Recovery Has

Failed to Meaningfully Plead Its Affirmative Defenses.

On August 25, 2026, the Court

ordered Plaintiff to file redacted copies of his memorandum of points and authorities, separate statement and Exhibit 16 to the Moreno declaration. It does not appear that these documents were ever filed, and Plaintiff's counsel did not respond to the Court Attendant's outreach efforts to acquire these documents in an unredacted format. Thus, the Court was unable to meaningfully review the moving papers or separate statement.

If Plaintiff did not file redacted copies pursuant to the Court's order, the Court will place unredacted copies in the public record. (Cal. Rule Ct., rule 2.551(b)(6).)

Issue no. 1: Duty

The Twenty-Third and Thirtieth Affirmative

Defenses generally claim that Defendant owed no duty to Plaintiff, and breached no duty owed to Plaintiff.

An answer should contain any and

all affirmative defenses or objections to the complaint that defendant may have, and that would otherwise not be in issue under a simple denial. Such defenses or objections are referred to as a "new matter." (CCP § 431.30(b).)

Generally, a defendant bears the burden of proving "new matter" and, as such,

must be specifically pleaded in the answer. (California Academy of Sciences v. County of Fresno (1987) 192 Cal.App.3d 1436, 1442.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (Walsh v. West Valley Mission Community College District (1998) 66 Cal.App.4th 1532, 1546.) Where the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not new matter but are denials. (Ibid.)

The cited defenses for lack of duty or breach do not state new matters and thus are not affirmative defenses even if there is a dispute as to whether a duty existed under the facts of this matter. Since these purported defenses are not new matters, they are adjudicated against Defendant without leave to amend. Accordingly, the motion is GRANTED as to issue no. 1.

Issue no. 2: Statute of Limitations and Laches

The fifth defense claims that the action is barred by the applicable statute of limitations, including those provided in CCP sections 337, 337.1, 337.15, 338, 339, 340, and 343 and California Civil Code sections 895, et seq.

"Generally, a cause of action accrues and the statute of limitation begins to run when a suit may be maintained. Ordinarily this is when the wrongful act is done and the obligation or the liability arises... In other words, a cause of action accrues upon the occurrence of the last element essential to the cause of action." (Cobb v. City of Stockton (2011) 192 Cal.App.4th 65, 72-73, citations and quotation omitted.) Under the Discovery Rule, the statute of limitations begins to run when the plaintiff discovers or reasonably should have discovered the facts giving rise to the cause of action. (Mills v. Forestex Co. (2003) 108 Cal.App.4th 625, 642-43.) In other words, the limitations period begins to run when the circumstances are sufficient to raise a suspicion of wrongdoing, or when a plaintiff has notice or information of circumstances sufficient to put a reasonable person on inquiry. (Id. at 648-49.) A plaintiff need not be aware of every fact necessary to establish a cause of action; a plaintiff who has a reason to suspect that someone has done something wrong has an incentive to sue and that is sufficient for statute of limitations purposes. (Jolly v. Eli Lilly Co. (1988) 44 Cal. 3d 1103, 1111.) Once a plaintiff has a suspicion of wrongdoing, they must go find the facts and cannot wait for

the facts to find them. (Id.) A plaintiff is charged with presumptive knowledge where they have information of circumstances to put them on inquiry or has the opportunity to obtain knowledge from sources open to their investigation. (Fox v. Ethicon Endo-Surgery, Inc., (2005) 35 Cal. 4th 797, 808.) "When a plaintiff reasonably should have discovered facts for purposes of the accrual of a case of action or application of the delayed discovery rule is generally a question of fact, properly decided as a matter of law only if the evidence . . . can support only one reasonable conclusion." (Broberg v. The Guardian Life Ins. Co. of America (2009) 171 Cal.App.4th 912, 921.) For summary adjudication, the issue is whether the undisputed facts support the inference that the plaintiff should have known or suspected the injury and wrongful cause outside of the applicable limitations period. (Cleveland v. Internet Specialties West, Inc. (2009) 171 Cal.App.4th 24, 31.)

The cited one-year statute of limitations would facially apply to at least the second cause of action. (See CCP §§ 340 [re: statutory penalties].) The tort was complete upon the unlawful recording on February 4, 2022. Plaintiff did not file suit until June 28, 2024, approximately two years and four months after the tort was complete. Otherwise, the longer statutes of limitation cited would not facially apply, such as CCP sections 337, 337.1, 337.15, 338, and 343 and Civil Code section 895, et seq., since this action was filed within three years of the first wrongful act. Additionally, certain statutes of limitations cited do not apply to the claims at hand, e.g., CCP sections 337.15, 339, and Civil Code section 895. Therefore, to support the motion for summary adjudication of this issue, Plaintiff must establish that he did not actually discover the recording, and could not reasonably have discovered the recording, prior to June 27, 2023.

Plaintiff does not show, as a matter of law, that he could not have reasonably discovered the recording by June 27, 2023. Strictly construed, he presents facts which suggest that he actually discovered the recording when it was shared with him in April 2024 and that the video was posted online in February 2024. While this would certainly present a question of fact as to whether reasonably discovered, Plaintiff's evidence does not foreclose the possibility that he could have reasonably discovered the publicly shared recording earlier. For example, there are no UMFs showing that the video was first publicly posted in February 2024. Thus, Plaintiff is not entitled to adjudication of the statute of limitations defense.

The third and seventh defense

claims that Plaintiff unreasonably delayed in filing and serving this action, which unduly and severely prejudiced Defendant's defense of the action, and therefore the doctrine of laches bars recovery here. "Laches is an equitable defense. It consists of a failure on the part of a plaintiff to assert his rights in a timely fashion accompanied by a period of delay with consequent results prejudicial to the defendant; in proper circumstances, it constitutes an equitable bar to the maintenance of a plaintiff's alleged cause of action. A mere delay, considered alone, does not usually constitute laches; normally, to be an effective bar, the delay must be disadvantageous to a defendant, and constitute a quasi-estoppel." (Swart v. Johnson, (1942) 48 Cal.App.2d 829, 834.) "Any delay is measured from the time the plaintiff knew (or should have known) about the alleged claim." (Drake v. Pinkham (2013) 217 Cal.App.4th 400, 406.) "The existence of laches is a question of fact to be determined by a weighing of all of the applicable circumstances by the trial judge." (Rouse v. Underwood (1966) 242 Cal. App. 2d 316, 325.)

Plaintiff does not present sufficient evidence to determine that, as a matter of law, Plaintiff did not delay and any such delay could not have prejudiced defendant. Notably, Plaintiff delayed some amount of time between when the video was taken and when he filed suit. (UMF 45-47.) Plaintiff also delayed a few months of time between when he actually learned of the video and when he filed suit. (UMF 64.) Plaintiff also does not provide any UMFs which explain why he could not have discovered the recording earlier. For example, there are no UMFs showing that the video was first publicly posted in February 2024. The presented UMFs also do not show that Defendant was not prejudiced, or that Defendant lacks evidence of prejudice as alleged. (UMF 61-70.)

Accordingly, the motion is DENIED as to issue no. 2.

Issue no. 3: Necessary Party, Res Judicata, and Real Party in Interest

As to the Necessary Party defense, the Answer asserts that there are necessary and indispensable parties to this action which have not been joined as parties. CCP section 389(a) pertains to the joinder of necessary parties, and states: "A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction

over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.” In deciding whether potential parties are necessary parties, the court analyzes the three distinct clauses of CCP § 389(a). (Countrywide Home Loans, Inc. v. Superior Court (1999) 69 Cal.App.4th 785, 792-793.) “Whether a party qualifies as indispensable is ordinarily treated as a matter where the trial court has a large measure of discretion in weighing factors of practical realities and other considerations.” (Kaczorowski v. Mendocino County Bd. of Supervisors (2001) 88 Cal.App.4th 564, 568.) “[J]oinder is required only when the absentee’s nonjoinder precludes the court from rendering complete justice among those already joined...” (Countrywide Home Loans v. Superior Court (1999) 69 Cal.App.4th 785, 794.) “A court has the power to proceed with a case even if indispensable parties are not joined. Courts must be careful to avoid converting a discretionary power or rule of fairness into an arbitrary and burdensome requirement that may thwart rather than further justice.” (City of San Diego v. San Diego City Employees’ Retirement System (2010) 186 Cal.App.4th 69, 84.) “For example, where existing and absent parties’ interests are sufficiently aligned such that the absent party’s rights will not be affected or impaired by the judgment or proceeding, the absent party need not be joined.” (Ibid.) Plaintiff presents undisputed evidence that each party principally responsible for the alleged breach in privacy has been joined into this suit. (UMF 76 [disputed only to the extent that the fact implies that Tumpa was acting within the scope and course of employment].) Defendants have not identified any individual or entity that should be joined. (UMF 78.) In opposition, Defendants cite no evidence of any other indispensable party to this case. Thus, there is no dispute of material fact as to the inapplicability of this defense.

As to the Res Judicata defense, the Answer asserts that the Complaint is barred by the doctrines of res judicata and/or collateral estoppel. The doctrine of res judicata generally precludes parties, or their privies, from relitigating a cause of action determined with finality in a prior proceeding. (Smith v. ExxonMobil Oil Corp. (2007) 153 Cal.App.4th 1407, 1413-14.) The doctrine has two aspects: it applies to

both a previously litigated cause of action, referred to as claim preclusion, and to an issue necessarily decided in a prior action, referred to as issue preclusion. (Vandenberg v. Superior Court (1999) 21 Cal.4th 815, 828.) “[T]he ‘cause of action’ is based upon the harm suffered, as opposed to the particular theory asserted by the litigant. [Citation.] Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief. ‘Hence a judgment for the defendant is a bar to a subsequent action by the plaintiff based on the same injury to the same right, even though he presents a different legal ground for relief.’ [Citations.]” Thus, under the primary rights theory, the determinative factor is the harm suffered. When two actions involving the same parties seek compensation for the same harm, they generally involve the same primary right. (Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798.) Claim preclusion applies if: (1) the issue decided in the prior adjudication is identical with the one presented in the new action; (2) there was a final judgment on the merits in the prior action, and (3) the party against whom the plea is asserted was a party or in privity with a party to the prior adjudication. (Id. at 797.) Plaintiff presents undisputed evidence that there is no prior litigation, judgment, or

adjudication between Woods and Defendants concerning the claims asserted in this action. (UMF 74.) Defendant presents no contrary evidence as to this material fact. Thus, there is no dispute of material fact as to the inapplicability of this defense.

As to the Real Party in Interest

defense, the Answer asserts that Plaintiff is not the real party in interest and therefore lacks standing to assert a claim for damages. CCP section 367 states that “[e]very action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” Generally, the real party in interest is the person who has the right to sue under the substantive law. (Gantman v. United Pac. Ins. Co. (1991) 232 Cal.App.3d 1560, 1566.) Plaintiff presents undisputed evidence that he is an individual whose privacy, confidentiality, and statutory rights were violated by the secret recording and public dissemination of their confidential treatment session while at Defendant’s facility. (UMF 75.) Thus, Plaintiff is a real party in interest to this action. Each cause of action is rooted in this harm. Defendant does not explain to which cause of action this defense might apply. Defendant does not provide any evidence to dispute material fact, even if a portion of Plaintiff’s claimed damages flow through the Lil Uzi Vert LLC. Thus, there is no dispute of

material fact as to the inapplicability of this defense.

Accordingly, the motion is GRANTED
as to issue no. 3.

Issue no. 4: Lack of Breach of Contract

The fifteenth defense generally
claims that Defendant breached no duty owed to Plaintiff under any contract. As
discussed in issue 1, the lack of breach does not state a new matter. Thus, the
fifteenth defense is not truly an affirmative defense. Accordingly, the motion
as to the fifteenth affirmative is GRANTED without leave.

Issue no. 5: Representations Outside Scope of Authority

The seventeenth affirmative defense
alleges that any representations made by co-defendants or its employees were
made without the knowledge of Defendant and without any authority, express or
implied, on the part of Defendant, and outside of the scope of any agreement or
relationship between the co-defendant and Defendant. Defendant does not cite
the existence of any “lack of knowledge” affirmative defense. The lack of
knowledge or scope of authority/employment is not a new matter, but a part of
the elements of the underlying claim. Accordingly, the motion is GRANTED as to
issue no. 5.

Issue no. 6: Accord and Satisfaction

An accord and satisfaction is the
substitution of a new agreement for and in satisfaction of a preexisting
agreement between the same parties; the usual purpose is to settle a claim at a
lesser amount. (Civ. Code §§ 1521, 1523; *In re Marriage of Thompson*
(1996) 41 Cal.App.4th 1049, 1058 – 1059.) The elements of an accord and
satisfaction are: (1) a bona fide dispute between the parties, (2) the debtor
sends a certain sum on the express condition that acceptance of it will
constitute full payment, and (3) the creditor so understands the transaction
and accepts the sum. (Id.) An accord and satisfaction may be implied. (Id.)
Whether a transaction constitutes an accord and satisfaction depends on the
intention of the parties as determined from the surrounding circumstances,
including the conduct and statements of the parties, and notations on the
instrument itself. (Id.)

Plaintiff presents undisputed evidence that no accord and satisfaction took place. The Outpatient Agreement and the Inpatient Agreement are the "entire agreement[s]" and cannot "be modified or amended except by a written document executed by all parties to this Agreement." (UMF 91.) It is undisputed that Defendant has not produced any evidence that any accord was reached between the parties, or that any satisfaction was rendered regarding the instant claims. (UMF 92-93.)

Accordingly, the motion is GRANTED as to issue no. 6.

Issue no. 7: Business Judgment, Defendant's Good Faith, and Plaintiff's Bad Faith

As to the business justification defense, the Answer asserts that Defendant acted in good faith and with proper business justifications for all the conduct and practices in which it engaged. Defendant also raises the business justification rule, or a business justification defense. To the extent that this might be considered a new matter, such a defense would only apply to the duties between business directors and shareholders, or to business interference torts. (See *Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1044 [business judgment rule generally]; *Herron v. State Farm Mut. Ins. Co.* (1961) 56 Cal.2d 202, 206-207 [interference claims].) Good faith might operate as a defense in other business contexts as well. (See, e.g., *Naranjo v. Spectrum Sec. Servs., Inc.*, (2024) 15 Cal. 5th 1056 [employer's good faith belief that it was complying with wage and hour law precluded the imposition of civil penalties for Labor Code violations].) No such causes of action or similar facts are alleged here. Defendant fails to show how this affirmative defense might apply to the instant privacy claims.

As to the bad faith defense, the answer asserts that each purported cause of action was brought without reasonable cause and without a good faith belief that there was a judicial controversy under the facts and the law to warrant the filing of said Complaint against Defendant. The Answer further asserts that Plaintiff must therefore pay all necessary and reasonable defense costs, including attorneys' fees, incurred by Defendant, as set forth in CCP section 128.5. The Court is not persuaded that CCP section 128.5 acts as an affirmative defense. The fact that a cause of

action lacks reasonable cause or a good faith belief for the facts asserted therein is not a new matter, but rather a failure of an element of the underlying cause of action. Moreover, the statute expressly requires that any sanctions be sought by separate motion, with notice requirements and safe harbor provisions. (CCP § 128.5(f).) Finally, Plaintiff presents evidence that he had grounds for initiating this action, as demonstrated by the foregoing undisputed material facts establishing that Oro Recovery owed statutory and contractual duties of confidentiality to Woods, and that such duties were breached through the unauthorized recording and dissemination of their confidential treatment session, and that Woods suffered harm as result thereof. (UMF 1-34, 44-59, 94.) While Defendant submits evidence which might support the conclusion that they did not breach its duty of care, Defendant submits no evidence or arguments in response to Plaintiff's evidence of good faith. (Id.)

Accordingly, the motion is GRANTED as to issue no. 7.

Issue no. 8: Certain Defense Lack Merit

This issue is noticed against the Seventeenth, Twenty-Fourth, and Twenty-Ninth Affirmative Defenses, which are already embraced by other issues (discussed above). Further, issue no. 8 is not accurately reflected in the separate statement. Accordingly, the motion is DENIED as to issue no. 8.

Issue no. 9: Failure to Plead Affirmative Defenses

This issue does not have any corresponding facts in the separate statement. Additionally, the failure to plead facts in support of an affirmative defense would not be a basis for summary adjudication. Rather, this argument might support a demurrer or similar motion, and leave to amend would be granted if any such demurrer were sustained. Accordingly, the motion is DENIED as to issue no. 9.

Conclusion

The motion is GRANTED as to issue nos. 1, 3-7, and DENIED as to nos. 2, 8-9.

Pro Hac Vice Application

Legal
Standard

California Rules of Court ("CRC") rule

9.40 provides that an attorney in good standing in another jurisdiction may apply to appear pro hac vice in this State by way of written application upon due notice to all interested parties, as well as service on the State Bar in San Francisco with payment of a reasonable fee, so long as that attorney is not a resident of California, does not work in California and does not perform regular or substantial business, professional or other activities in the State.

The written application must

provide the following information: (1) applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in this State in the preceding two years, if any; and (5) the name, address, and telephone number of the active California State Bar member who is counsel of record in the local action. (CRC Rule 9.40(d).)

ANALYSIS

Plaintiff Symere Woods applies for permission for Dewey

J. Gonsoulin III of Norton Rose Fulbright US LLP, to appear pro hac vice in this action on his behalf. The declaration satisfies the requirements of rule 9.40.

(Gonsoulin Decl., ¶¶ 1-11, Ex. A.) Accordingly, the application is

GRANTED.